

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ROSA CHICLANA AND WILLIAM GARCIASUMMONS

Plaintiff,

Index No.:

-against-

Purchased:

CITY OF NEW YORK, MOISES RAMOS,
AMELA DZIHIC, JOHN OR JANE DOE 1-10,Plaintiff selects New York County as
the place of trial.Defendants.
-----XThe basis of venue is where the injury
occurred.**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 10, 2021

By: Rebecca Abraham, Esq.

SIM & DEPAOLA, LLP*Attorneys for Plaintiff*

42-40 Bell Boulevard - Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

MOISES RAMOS (Shied No. 14571, Tax Id. 9650009)
POLICE SERVICE AREA 5
221 East 123rd St.
New York, New York 10035

AMELA DZIHIC (Shield No. 9650009, Tax Id. 3162)
POLICE SERVICE AREA 5
221 East 123rd St.
New York, New York 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ROSA CHICLANA AND WILLIAM GARCIA,

Plaintiff,

Index No.:

Purchased:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, MOISES RAMOS,
AMELA DZIHIC, JOHN OR JANE DOE 1-10,

Defendants.

-----X

Plaintiff, **ROSA CHICLANA** and **WILLIAM GARCIA** by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, for her complaint against the Defendants, **CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC , AND JOHN OR JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiffs seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of her civil rights, as guaranteed and protected by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.
2. The following claims arose on May 05, 2020, when Defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested, detained Plaintiffs inside the vicinity of 225 Second Avenue, Manhattan, New York. Plaintiff, Rosa Chiclana was subsequently removed to the 25th NYPD Precinct, and then transported to the 23rd

NYPD Precinct. As a result, Plaintiff, Rosa Chiclana (“Ms. Chiclana”), was deprived of her liberty and suffered various physical, emotional and psychological injuries. Ms. Chiclana was wrongfully detained over the course of three (3) days. Ms. Chiclana was falsely arrested, maliciously prosecuted and denied due process of law. Plaintiff, William Garcia (“Mr. Garcia”), was subsequently removed to the 5th NYPD precinct. As a result, Mr. Garcia was deprived of his liberty and suffered various physical, emotional and psychological injuries. Mr. Garcia was wrongfully detained over the course of two (2) days. Mr. Garcia was falsely arrested, maliciously prosecuted and denied due process of the law.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
4. Plaintiffs have filed a notice of claim(s) regarding the subject incident with the New York City and State of New York.
5. Over thirty (30) days have elapsed since the filing of the Notice of Claim(s) and this matter has not been adjusted or settled.
6. Plaintiff, Rosa Chiclana, has complied with the municipal defendant’s request for an oral examination pursuant to Section 50-H of the New York General municipal Law.
7. This action is being filed within one (1) year and ninety (90) days since the causes of action arose with applicable tolling provisions.
8. Plaintiffs seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorney fees, and such other and further relief as this court may deem just and proper.

PARTIES

9. At all relevant times herein, Plaintiff, Rosa Chiclana, (“Ms. Chiclana”), is an adult, Hispanic female, who presently resides in Manhattan, within the City and State of New York.
10. At all relevant times herein, Plaintiff William Garcia, (“Mr. Garcia”) is an adult, Hispanic male, who presently resides in Manhattan, within the City and State of New York.
11. Defendant, City of New York (“City”), is a municipal corporation duly organized and existing, under the laws of the State of New York.
12. At all relevant times herein, the New York City Police Department (“NYPD”) is a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant City.
13. At all relevant times herein, Defendant City, acting through its New York City Police Department, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.
14. At all relevant times herein, Defendant, City, was responsible for enforcing the rules and regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

15. At all relevant times herein, Defendant MOISES RAMOS (“RAMOS”) was a police officer employed by the NYPD and as such, was acting in the capacity of an agent, servant and employee of Defendant City under Shield No. 14571 and Tax Id. 9650009, and was further assigned to Police Service Area 5. Defendant RAMOS is being sued in his individual and official capacity.
16. At all relevant times herein, Defendant, AMELA DZIHIC (“DZIHIC”) was a police officer employed by the NYPD and such was acting in the capacity of an agent, servant and employee of Defendant City under Shield No. 9650009 and Tax Id. 3162, and was further assigned to Police Service Area 5. Defendant DZHIHIC is being sued in his individual and official capacity.
17. The names JOHN or JANE doe 1-10 are meant as fictitious placeholders for NYPD officers who 1)Assaulted Plaintiff 2) Falsely arrested Plaintiff 3) Falsely imprisoned Plaintiff 4) Illegally searched Plaintiff’s dwelling. 5) Illegally searched Plaintiff’s person. 6) handcuffed Plaintiff. 7) transported Plaintiff to the NYPD precincts 8) illegally searched and seized 9) maliciously initiated a prosecution of Plaintiff and who aided, abetted and acted in concert with other Defendants to do the same.
18. At all relevant times herein, Defendants, John or Jane Doe 1-10 were police officers detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of John or Jane doe 1-10, but believes such knowledge is within the possession of the defendants. Defendants John or Jane doe 1-10 are being sued in their individual and official capacities.

19. At all relevant times herein, Defendants, CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

20. On or about May 05, 2020, at approximately 12:25 AM., in the vicinity of 225 Second Avenue, Manhattan, New York, Ms. Chiclana and Mr. Garcia were illegally targeted, because of their race, religion, gender, national origin or other improper characteristic for adverse police action, by Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10.

21. Plaintiffs were lawfully present at aforesaid premises and were not committing any crimes and were further not engaged in criminal activities, nor was there any indicia of such.

22. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, Illegally seized and searched said dwelling despite the fact that they had no valid search warrant or any legal authority to do so.

23. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, arrested Mr. Garcia, despite being fully aware that Mr. Garcia had not committed any crimes or violation of the law and that there was no probable cause to arrest Mr. Garcia.

24. Defendants slammed Mr. Garcia onto the floor and violently twisted his arms behind his back.
25. Defendants, including CITY OF NEW YORK, MOISES RAIMOS, AMELA DZIHIC and , JOHN OR JANE DOE, applied the handcuffs to Mr. Garcia's person in an excessively forceful and tight fashion, which caused him to suffer substantial pain and discomfort.
26. Mr. Garcia repeatedly requested that Defendants, including CITY OF NEW YORK, AMELA DZIHIC, MOISES RAIMOS, and JOHN OR JANE DOE 1-10, loosen the handcuffs, because they were causing him substantial pain and discomfort due to their excessive tightness.
27. Defendants, including, CITY OF NEW YORK, AMELA DZIHIC, MOISES RAIMOS, and JOHN OR JANE DOE 1-10, ignored all of Mr. Garcia's pleas to loosen the handcuffs, and Defendants sadistically and intentionally squeezed the handcuffs with Mr. Garcia's wrists within in order to inflict wanton and unnecessary pain to Mr. Garcia. This resulted in Mr. Garcia's wrists sustaining contusions, swelling, and loss of feeling.
28. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELIA DZIHIC, and JOHN OR JANE DOE, forced Mr. Garcia to stand up by grabbing his arms
29. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, illegally interrogated Mr. Garcia in violation of his rights pursuant to *Miranda v. Arizona* 384 U.S. 436 (1996)
30. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELIA DZIHIC, and JOHN OR JANE DOE 1-10, transported Mr. Garcia against his will to the 5th NYPD precinct where he was subjected to invasive and intrusive scans including a

retina scan and fingerprinted and strip searched and illegally interrogated Mr. Garcia in further violation of his rights pursuant to *Miranda v. Arizona* 384 U.S. 436 (1966)

31. Defendants subsequently removed Mr. Garcia to Central Bookings where he was unlawfully detained for approximately one (1) day.
32. Mr. Garcia was released from Central Bookings on May 07, 2020, at approximately 11:00 AM without being charged with a crime, criminal acts or criminal conduct.
33. Mr. Garcia necessitated immediate medical attention due to injuries caused by Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELLIA DZIHIC, and JOHN OR JANE DOE.
34. The aforesaid assaults caused Mr. Garcia to sustain serious and/or permanent physical injuries to his back, left shoulder and ribs.
35. On May 05, 2020, between 12:25 AM and 2:00 AM, outside the vicinity of 225 Second Avenue, Manhattan, New York, Ms. Chiclana asked Defendants where Mr. Garcia was going.
36. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, arrested Ms. Chiclana, despite being fully aware that Ms. Chiclana had not committed any crimes or violation of the law and that there was no probable cause to arrest Ms. Chiclana.
37. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10 violently slammed Ms. Chiclana onto the ground without justification, consent or any legal authority to do so.
38. Defendants, including CITY OF NEW YORK, MOISES RAIMOS, AMELA DZIHIC and , JOHN OR JANE DOE, applied the handcuffs to Ms. Chiclana's person in an

excessively forceful and tight fashion, which caused her to suffer substantial pain and discomfort.

39. Plaintiff repeatedly requested that Defendants, including CITY OF NEW YORK, AMELA DZIHIC, MOISES RAIMOS, and JOHN OR JANE DOE 1-10, loosen the handcuffs, because they were causing her substantial pain and discomfort due to their excessive tightness.

40. Defendants, including, CITY OF NEW YORK, AMELA DZIHIC, MOISES RAIMOS, and JOHN OR JANE DOE 1-10, ignored all of Ms. Chiclana's pleas to loosen the handcuffs, and Defendants sadistically and intentionally squeezed the handcuffs with Ms. Chiclana's wrists within in order to inflict wanton and unnecessary pain to Plaintiff. This resulted in Ms. Chiclana's wrists sustaining contusions, swelling, and loss of feeling.

41. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELIA DZIHIC, and JOHN OR JANE DOE 1-10, violently stepped on Ms. Chiclana.

42. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELIA DZIHIC, and JOHN OR JANE DOE 1-10, violently kicked and punched Ms. Chiclana throughout her entire body.

43. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELIA DZIHIC, and JOHN OR JANE DOE, forced Ms. Chiclana to stand up by grabbing her arms.

44. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, illegally seized and searched Ms. Chiclana's person and personal property despite the fact that they had no indication, reasonable suspicion or probable cause that the Ms. Chiclana had committed a crime.

45. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, illegally interrogated Ms. Chiclana in violation of her rights pursuant to *Miranda v. Arizona* 384 U.S. 436 (1996)
46. Defendants, CITY OF NEW YORK, AMELA DZIHIC, MOISES RAIMOS, and JOHN OR JANE DOE 1-10 removed Ms. Chiclana against her will to the 25th NYPD precinct where she was subjected to invasive and intrusive scans including a retina scan and fingerprinted and strip searched.
47. Defendants, including CITY OF NEW YORK, CITY OF NEW YORK, AMELA DZIHIC, MOISES RAIMOS, and JOHN OR JANE DOE 1-10 then removed Ms. Chiclana to the 23rd Precinct and illegally interrogated Ms. Chiclana in further violation of her rights pursuant to *Miranda v. Arizona* 384 U.S. 436 (1966)
48. Ms. Chiclana was subsequently transferred to Central Bookings.
49. Ms. Chiclana was released from custody on or about May 08, 2020.
50. As a result of Defendant's knowingly and intentionally providing false statements and allegations, Ms. Chiclana was falsely charged under docket number CR009401.
51. Ms. Chiclana asserts that Defendants arrested and detained Ms. Chiclana with the full knowledge that Ms. Chiclana committed no crimes or violations of the law.
52. Ms. Chiclana, therefore asserts that due to the clear absence of any viable probable cause to warrant her detention of prosecution, at any point, she was unlawfully detained and maliciously prosecuted from the moment she was seized by Defendants, up to, and until the unconditional dismissal of the criminal charges against her on January 29, 2021.
53. Defendants, including, CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10 arrested and caused a malicious prosecution to be

initiated against Ms. Chiclana, because of their desires to use Ms. Chiclana's arrest and false imprisonment to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

54. Defendants, including, CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10 arrested and caused a malicious prosecution to be initiated against Mr. Garcia, because of their desires to use Mr. Garcia's arrest and false imprisonment to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

55. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, arrested, applied excessive force against Ms. Chiclana in retaliation for Ms. Chiclana's exertion of constitutional right to freely express her opinion and inquiries, namely Plaintiff's displeasure with the manner in which Defendants addressed her, and her request for an explanation as to why Defendants acted so discourteously toward Plaintiffs.

56. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, arrested, applied excessive force against Mr. Garcia in retaliation for Mr. Garcias's exertion of his constitutional right to freely express his

opinion and inquiries, namely Plaintiff's displeasure with the manner in which Defendants addressed him, and his request for an explanation as to why Defendants acted so discourteously toward Mr. Garcia.

57. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, subjected Ms. Chiclana to disparate treatment compared to other individuals similarly situated, because defendants do not brutally batter white women who exercise their constitutional right to freely express their inquiries.
58. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, subjected Mr. Garcia to disparate treatment compared to other individuals similarly situated, because defendants do not arrest white men without an arrest warrant or probable cause, and they do not brutally assault white men during warrantless searches.
59. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELIA DZIHIC, and JOHN OR JANE DOE 1-10, arrested and maliciously prosecuted Ms. Chiclana, not because of any actual probable cause to believe Ms. Chiclana had committed any crimes or violations of the law, but due to their assumption that defendants' version of events would undoubtedly and unduly be credited over Ms. Chiclana's, solely because Ms. Chiclana is a Hispanic female.
60. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELIA DZIHIC, and JOHN OR JANE DOE 1-10, arrested and maliciously prosecuted Mr. Garcia, not because of any actual probable cause to believe Mr. Garcia had committed any crimes or violations of the law, but due to their assumption that defendants' version of events

would undoubtedly and unduly be credited over Mr. Garcia, solely because Mr. Garcia is a Hispanic male.

61. Ms. Chiclana, therefore asserts that due to the clear absence of any viable probable cause to warrant his detention of prosecution, at any point, he was unlawfully detained and maliciously prosecuted from the moment he was seized by Defendants, up to, and until the prosecutors declined to initiate a prosecution against Ms. Chiclana.
62. Mr. Garcia asserts that Defendants arrested and detained Mr. Garcia with the full knowledge that Mr. Garcia committed no crimes or violations of the law.
63. Mr. Garcia, therefore asserts that due to the clear absence of any viable probable cause to warrant his detention of prosecution, at any point, he was unlawfully detained and maliciously prosecuted from the moment he was seized by Defendants, up to, and until the prosecutors declined to initiate a prosecution against Mr. Garcia.
64. The Defendants utterly demoralized Plaintiffs in Defendant's assaults, unlawful, arrests and malicious prosecution on Plaintiffs. This has rendered Plaintiffs permanently alarmed and psychologically distressed.
65. As a result of aforesaid acts, Plaintiffs are not secured of their constitutional rights. This has effectively rendered Plaintiffs permanently shocked psychologically distress.
66. Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

67. Plaintiffs assert that the Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, and JOHN OR JANE DOE 1-10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.
68. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.
69. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the

inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

70. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain system in throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

71. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

72. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”
73. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.
74. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

75. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.
76. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.
77. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is

Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

78. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.
79. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.
80. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.
81. Defendants’ actions, pursuant to Plaintiffs’ underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiffs’ civil

rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

82. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.
83. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.
84. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law

enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, JOHN OR JANE DOE 1-10,

85. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.
86. The aforementioned acts of Defendants, including CITY OF NEW YORK, MOISES RAMOS, AMELA DZIHIC, JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.
87. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

88. The above paragraphs are here incorporated by reference as though fully set forth herein.
89. Plaintiffs engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.
90. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.
91. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against Plaintiffs.
92. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities or by chilling her desire to further participate or engage in such protected speech or activities.
93. Accordingly, Plaintiffs' right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, was violated by Defendants.
94. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.
95. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

96. The above paragraphs are here incorporated by reference as though fully set forth herein.

97. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

98. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

99. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of his liberty and the initiation of criminal charges against her.

100. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities, or by chilling her desire to further participate or engage in such protected speech or activities.

101. Accordingly, Plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

102. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

103. The above paragraphs are here incorporated by reference as though fully set forth herein.

104. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
105. Plaintiffs was conscious and fully aware of the unreasonable searches and seizures to their persons and property.
106. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.
107. The unreasonable searches and seizures to Plaintiffs' person and property were not otherwise privileged.
108. Accordingly, Defendants violated Plaintiffs 'right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.
109. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
110. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

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FOURTH CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

111. The above paragraphs are here incorporated by reference as though fully set forth herein.

112. Defendants subjected Plaintiffs and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
113. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their person and property.
114. Plaintiffs did not consent to the unreasonable searches and seizures to their person or property.
115. The unreasonable searches and seizures to Plaintiffs' person and property were not otherwise privileged.
116. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.
117. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

118. The above paragraphs are here incorporated by reference as though fully set forth herein.
119. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.
120. Plaintiffs were conscious of their confinement.
121. Plaintiffs did not consent to their confinement.
122. Plaintiffs' arrest and false imprisonment was not otherwise privileged.
123. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
124. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth herein.
126. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
127. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

128. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
129. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

130. The above paragraphs are here incorporated by reference as though fully set forth herein.
131. At all relevant times, Defendants caused Plaintiffs to fear for his physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.
132. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered her without her consent or justification.
133. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.
134. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
135. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

136. The above paragraphs are here incorporated by reference as though fully set forth herein.

137. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

138. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered her without her consent.

139. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

140. The above paragraphs are here incorporated by reference as though fully set forth herein.

141. Defendants initiated the prosecution against Plaintiffs.

142. Defendants lacked probable cause to believe Plaintiffs was guilty or that the prosecution could succeed.

143. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

144. The prosecution was terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.

145. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered significant damages.
146. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
147. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

148. The above paragraphs are here incorporated by reference as though fully set forth herein.
149. Defendants initiated the prosecution against Plaintiffs.
150. Defendants lacked probable cause to believe Plaintiffs was guilty or that the prosecution would succeed.
151. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
152. The prosecution was terminated in Plaintiffs' favor, when all criminal charges were unconditionally dismissed and sealed.
153. Accordingly, Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights.
154. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

155. The above paragraphs are here incorporated by reference as though fully set forth herein.
156. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.
157. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
158. Defendants intended to inflict substantial harm upon Plaintiffs.
159. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
160. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
161. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

162. The above paragraphs are here incorporated by reference as though fully set forth herein.
163. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.
164. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
165. Defendants intended to inflict substantial harm upon Plaintiffs.
166. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
167. Defendants' actions deprived Plaintiffs of her constitutional rights to free from illegal searches and seizures and to not be deprived of her liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.
168. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

169. The above paragraphs are here incorporated by reference as though fully set forth herein.

170. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.
171. Defendants forwarded said false information to prosecutors within the District Attorney's Office.
172. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiffs' liberty and freedom of movement.
173. Accordingly, Defendants deprived Plaintiff of her civil rights, pursuant to Article I, Sections 1, 2, 6 & 9, of the New York State Constitution, as well Article II, Sections 10 & 12, of the New York Civil Rights Law.
174. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
175. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

176. The above paragraphs are here incorporated by reference as though fully set forth herein.
177. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

178. Defendants forwarded said false information to prosecutors within the District Attorney's Office.
179. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.
180. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.
181. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

182. The above paragraphs are here incorporated by reference as though fully set forth herein.
183. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.
184. Accordingly, Defendants violated Plaintiff's rights, pursuant to the Administrative Code of the City of New York, Section 14-151
185. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

186. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under

New York State law.

187. The above paragraphs are here incorporated by reference as though fully set forth herein.

188. Mr. Garcia, as a Hispanic male, is a member of a racial minority and protected class.

189. Ms. Chiclana, as a Hispanic female, is a member of a racial minority and protected class.

190. Defendants discriminated against Plaintiffs on the basis of their race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

191. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

192. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

193. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

194. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

195. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
196. Accordingly, Defendants violated Plaintiffs' rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.
197. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
198. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

199. The above paragraphs are here incorporated by reference as though fully set forth herein.
200. Plaintiffs, as Hispanic persons, of a racial minority and protected class.
201. Defendants discriminated against Plaintiff on the basis of her race, color or ethnicity.
202. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.
203. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of her Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
204. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

205. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
206. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
207. Accordingly, Defendants violated Plaintiffs' rights, under the Fourteenth Amendment.
208. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

209. The above paragraphs are here incorporated by reference as though fully set forth herein.
210. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of her rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of her liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.
211. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.
212. As a result, Plaintiffs sustained injuries to her person, was deprived of her liberty or was deprived of rights or privileges of citizens of the United States.

213. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.
214. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.
215. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.
216. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

217. The above paragraphs are here incorporated by reference as though fully set forth herein.
218. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
219. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

220. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

221. The above paragraphs are here incorporated by reference as though fully set forth herein.

222. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

223. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

224. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Due Process/Fabrication of Evidence Claim Under
42 U.S.C. § 1983 Against Individual Defendants

225. The above paragraphs are here incorporated by reference as though fully set forth herein.
226. Those Defendants deliberately fabricated evidence against the Plaintiffs and that as a result of this evidence being used against her, he was deprived of her constitutional right without due process of law.
227. As a result, Plaintiffs sustained injuries to her person, was deprived of her liberty or was deprived of rights or privileges of citizens of the United States
228. The Defendants fabricated evidence in order to support their false arrest, detention and prosecution of the Plaintiffs. The Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true, As a result, the Plaintiffs was deprived of her constitutional rights.
229. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

230. The above paragraphs are here incorporated by reference as though fully set forth.
231. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.
232. Defendant City breached those duties of care.

233. Defendant City placed Defendants in a position where they could inflict foreseeable harm.
234. Defendant City knew or reasonably should have known of its employees' propensity for committing civil rights violations.
235. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.
236. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

237. The above paragraphs are here incorporated by reference as though fully set forth herein.
238. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiffs, as defined in state or federal law which presented a serious risk of physical injury to Plaintiffs, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.
239. Accordingly, Defendants committed a crime of violence against Plaintiffs and violated Plaintiffs' rights, pursuant to the N.Y.C. Admin. Code § 10-403.
240. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
241. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FOURTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

242. The above paragraphs are here incorporated by reference as though fully set forth.
243. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of her civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.
244. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.
245. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.
246. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.
247. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

248. Defendant City's conduct caused Plaintiffs to be deprived of her civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

249. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- y) On the Twenty-Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- z) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- aa) Awarding Plaintiffs reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

ATTORNEY VERIFICATION

I, Rebecca Abraham, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 10, 2021



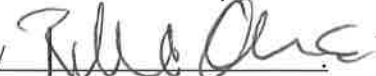
Rebecca Abraham, Esq.

JURY DEMAND

Plaintiffs demands a trial by jury.

Dated: Bayside, New York
December 10, 2021

SIM & DEPAOLA, LLP

/s/ 

By: Rebecca Abraham, Esq.

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